

RADIX® GUMBALL CLUB TERMS AND CONDITIONS

PLEASE READ THESE TERMS AND CONDITIONS CAREFULLY BEFORE USING THIS WEBSITE AND/OR ANY SERVICES OFFERED VIA THIS WEBSITE.

This Website is provided by Radix® Publishing Limited which is registered in Jersey with company number 136972 and whose registered office is at First Floor, La Chasse Chambers, Ten La Chasse, La Chasse, St. Helier JE2 4UE, Jersey (“Radix Publishing”, “we”, “us” or “our”).

These terms and conditions apply to your access to, and use of, all services provided via this Website (<https://gumball-club.radixdlt.com/>) (the “Website”).

The services available via the Website are described at <https://gumball-club.radixdlt.com/> and shall be referred to as the “Services”.

The Gumball Club(this Website) and all Services provided by us are provided for free and without obligation, warranty or guarantee of any kind.

We may provide you via this Website with links to third party services, including DEXs, and/or d’Apps services, software, resources, or materials (“Third Party Materials”).

We are not responsible for the performance, functionality, security, title, or right to use any applications, services, or materials provided by third parties which are accessed, utilised, or downloaded from this Website.

By using the Website and/or accessing any Services via the Website you acknowledge that you have read all warnings and disclaimers in respect of the use of the Website and the Services.

Further, you agree that these terms and conditions and those terms relating specifically to each Service, software, download, materials and information provided by us, are binding upon you and your successors in title, assignees, affiliates, agents, sub-contractors, and employees.

1) USE OF RADIX® GUMBALL CLUB

- 1.1. The Radix® Gumball Club functionality provided via the Website permits the user to formulate instructions to send to the Radix® Ledger via your Radix® Wallet.
- 1.2. The Radix® Gumball Club cannot perform any action on your behalf, nor submit anything to the Radix® Ledger on your behalf.
- 1.3. Every action requested via the Radix® Gumball Club must be reviewed and approved by you using the Radix® Wallet, and submitted as an instruction sent to the Radix® Ledger.
- 1.4. The Radix® Gumball Club does not transmit user instructions to the Radix Ledger. It provides a proposed set of actions that you review and approve as in 1.3.

2) USE OF THE RADIX® WALLET

If you use a Radix® Wallet, you agree that these terms and the terms of use of the Radix® Wallet apply to all use of this Website and those terms are incorporated herein by reference.

3) THIRD PARTY SERVICES

- 3.1 We may provide access to the Services and Third Party Materials free of charge as a

convenience. We do not have control over their content and neither recommend, warrant, nor endorse their operation. Nor do we represent that any information which is displayed or stored is accurate or up to date.

- 3.2 We are not responsible for the availability, functionality, security, or legitimacy of the content, products, services, or assets on or accessible to or from any third party supplier (including any related websites, resources or links displayed therein).
- 3.3 We exclude and make no warranties or representations, express or implied, about any Third Party Materials or services, nor about the suitability of their products, services, or assets.
- 3.4 You acknowledge that you have sole responsibility for and assume all risk arising from or in connection with your use of any Third Party Materials, and/or your access to and use of third party websites, applications, or resources.

4) DISTRIBUTED LEDGER RISKS

- 4.1 Resources and services provided by third parties such as d'Apps (Distributed Applications) and DEXs (Decentralised Exchanges) may provide access to assets or services which have a high risk of illiquidity, devaluation, lockup, or loss. Further, such applications may fail to provide adequate security, be exposed to hacking, fraud, and/or be subject to regulatory restrictions. You are responsible for undertaking such due diligence and taking all such advice that a prudent person with your knowledge would take.
- 4.2 Neither Radix® Publishing nor any other Radix® company shall bear any liability whatsoever for any damage caused or contributed to by use or access to any Third Party Materials nor for any failure to complete any transaction on a ledger.
- 4.3 You should exercise significant caution and circumspection and undertake all prudent due diligence in respect of all counterparties and third parties before linking your Radix® Wallet with any third party service or otherwise providing any access to your personal, financial or confidential information.

5) CHANGES TO THESE TERMS

We amend these terms from time to time. Every time you wish to use the Website, please check these terms to ensure you understand the terms that apply at that time.

6) CONTINUITY

- 6.1 The Website and Services are made available free of charge. We do not warrant or provide any assurance that the Website, or any content or Services, will always be available or will be uninterrupted.
- 6.2 We may suspend, withdraw or restrict the availability of all or any part of the Website in our discretion. We will try to give you reasonable notice of any suspension or termination, but we are not obliged to do so.

7) USE VIA YOUR CONNECTION

- 7.1 You are responsible for the activity of all persons who access the Website via your internet connection and for ensuring they are aware of and comply with these terms and conditions and other applicable terms and conditions.
- 7.2 You must not permit, encourage or authorise any third party to represent or imitate you,

or to use any of your personal information, credentials, passwords, private or public keys to obtain or access any service or download any materials via this Website.

- 7.3 We may sell, assign or transfer our rights and/or obligations under these terms to another organisation. Whilst such an event might be published on our Website we shall have no obligation to provide any notice of such event. Your continued use of this Website shall constitute acceptance of a new agreement with the transferee/acquiror on these terms or other terms notified to you at the time.

8) ELIGIBILITY

- 8.1 You represent and warrant that you: (a) are of legal age to form a binding contract; (b) have not previously been suspended or removed from using any of our Services; (c) have full power and authority to enter into this agreement and in doing so will not violate any other agreement to which you are a party or any law or regulation which applies to you; and (d) are not under investigation for any financial crime (to your knowledge) and have not been charged or convicted of any offence involving dishonesty, money laundering, or breach of financial services regulations in any country.
- 8.2 If you are registering a legal entity as a user, you further represent and warrant that: (i) such legal entity is duly organized and validly existing under the applicable laws of the jurisdiction of its organization; and (ii) you are duly authorized by such legal entity to act on its behalf and to bind it.
- 8.3 You are solely responsible for ensuring that your use of the Services and the download and/or use of any materials which you download or access is lawful in all territories where you are resident or located from time to time and/or where the materials and/or Services are used from time to time.
- 8.4 By using the Website or any Services you represent and warrant that you meet all these eligibility requirements on a continuing basis.

9) SECURITY

- 9.1 We do not warrant or guarantee the security of the Website.
- 9.2 We will comply with our legal obligations in relation to privacy/data protection and use reasonable endeavours to monitor and maintain the security of the Website.
- 9.3 You are responsible for the security of any data which you download from the Services.
- 9.4 We will monitor computer security threats and take appropriate action, exercising the care reasonably expected of a provider of similar services. But we do not warrant that the Services are free from viruses or other security risks.

10) RIGHT TO RESTRICT ACCESS

- 10.1 If we become aware of any suspicious activity involving access to or use of the Website or to any Services or use of any credential, username, or log-on, we shall be entitled in our discretion, without notice and without recourse, to:
- a) limit, restrict, or block access to all or any Services, information, or functionality; and/or
 - b) disable, block, or blacklist any wallet, e-mail or other identifying address, at any time.
- 10.2 We are not responsible for the consequences of any use you make of any Services or

from your downloading or use of any software, documents, or information via the Website, or the consequences of your interactions with those Services, software, or documents (including, without limitation, any act or omission).

11) INTELLECTUAL PROPERTY

- 11.1 All software, materials and documents, designs, wireframes, databases, file formats and data which underpin the operation of this Website are protected by copyright and other intellectual property rights which include trademarks, patents, utility models, and common law rights in trade names and trading styles/get up.
- 11.2 Where informational materials are published on or made available via this Website these are for educational purposes only and for your personal use (or for use in the ordinary course of your business if you are a business user). The informational materials may not be reproduced for commercial purposes save with our express written consent.
- 11.3 RADIX®, XRD®, and SCRYPTO® are either registered trademarks of Radix® Publishing or used under license by Radix® Publishing and may not be used without our written consent.

12) OPEN SOURCE

- 12.1 An open-source version of software underpinning the functionality of the Website may be found here: <https://github.com/radixdlt/gumball-club>
- 12.2 You may use the open-source version of the software to create your own Gumball Club in accordance with the open-source terms of use that apply but you must not represent any website or hub you create as being authorised by Radix® Publishing, and such Gumball Club must not be presented in any way which suggests or implies that it is provided by Radix® Publishing or any of the Radix® companies or is otherwise endorsed by Radix® Publishing or any of the Radix® companies.

13) RESTRICTIONS ON USE

- 13.1 You must not:
 - a) represent that any website, hub, portal, or other material you create (including by use of the open source code provided in accordance with clause 12) is authorised by, licensed by, associated with or endorsed by Radix® Publishing or any of the Radix® companies nor that any service you provide is provided by or with the authorisation of Radix® Publishing or any of the Radix® companies;
 - b) use, promote, or facilitate the use of the Website or any of the Services for, or in connection with any fraudulent or other unlawful activity anywhere in the world including but not limited to money-laundering, terrorist financing or tax avoidance;
 - c) impersonate any other person on the Website or permit or assist any other person to conceal their identity on the Website or use the Website and/or the Services by impersonating a lawful user (including yourself);
 - d) violate any law, regulation, contract or third party right by accessing or using the Website or the Services;
 - e) use the Website or any Service to create or transmit false, inaccurate, or misleading information or to conceal unlawful activity;
 - f) use the Services in any manner that could interfere with, disrupt, negatively affect, or

inhibit other users from fully enjoying the Services, or that could damage, disable, overburden or impair the functioning of the Services in any manner;

- g) attempt to access, or procure or assist others to access, any part of the Website, system or network or any Services which you are not authorised to access;
- h) disobey any laws or regulations that apply to you in any place you use the Website or Services or any materials downloaded from the Website;
- i) use the Services to pay for, support, or otherwise engage in any illegal activities, including, but not limited to illegal gambling, fraud, money-laundering or terrorist activities;
- j) use any robot, spider, crawler, scraper or other automated means or interface not provided by us to access our Services or to extract data;
- k) engage in automated data collection (scraping) unless such automated data collection is confined solely to search indexing for display on the Internet;
- l) engage in the reproduction of any content posted (such as public labels or name tags) or extracted from our APIs, CSV exports, the Website or any of our affiliate websites without our prior consent or authorization;
- m) attempt to circumvent any content filtering techniques we employ or attempt to access any Service or area of our Services that you are not authorized to access; or
- n) develop or assist the development of any third party applications that interact with the Services without our prior written consent.

13.2 These provisions constitute an express reservation of our rights in this regard, including for the purposes of Article 4(3) of Digital Copyright Directive ((EU) 2019/790).

13.3 This clause shall not apply insofar as (but only to the extent that) such limiting of text or data mining or web scraping activity is prevented by operation of law under the laws which are applicable to us.

13.4 You are responsible for configuring your information technology, computer programs and platform to access the Website. You should use your own virus protection software.

14) SECURITY BREACHES

14.1 We will not in any event be liable for losses, interruptions of service, delays, or errors which arise from any systems, networks, third party software or matters beyond our control, including but not limited to hacking, unlawful interference with systems, security breaches or exposure of your data caused or facilitated by the nature or configuration of any devices you use which interoperate with our systems.

14.2 We are not responsible for any loss, including loss of money, arising from or in connection with any of the following:

- a) you cannot access the Website or any of the Services via the Website or if the Website or any of the Services are slow;
- b) any device, hardware or software you use in connection with the Website is damaged or corrupted or does not work;
- c) there is use of jailbroken or non-standard operating systems, interfaces or firmware;
- d) the Website and/or any of the Services do not operate as you expect, do not meet

- your requirements or contain errors or defects;
- e) we are prevented from providing the Website or any of the Services in part or in full;
 - f) a third party uses your security credentials or your device(s) to obtain access to your data or assets; or
 - g) you fail to take appropriate measures to prevent contamination of your equipment by viruses or similar threats.

15) MALICIOUS MISUSE

- 15.1 You must not misuse the Website or Services by knowingly introducing viruses, trojans, worms, logic bombs or other material that is malicious or technologically harmful. You must not attempt to gain unauthorised access to the Website, the server on which the Website is stored or any server, computer or database connected to the Website.
- 15.2 You must not attack the Website via a denial-of-service attack or a distributed denial-of service attack. By breaching this provision, you would commit a criminal offence under the Computer Misuse Act 1990. We will report any such breach to the relevant law enforcement authorities and we shall be entitled to disclose any information we have concerning you or your activities to such authorities and you consent to such disclosure.
- 15.3 You agree to indemnify us and hold us safe in relation to all loss, damages and/or costs which arise from your breach of this clause 15.

16) CONSUMERS AND BUSINESS USERS

- 16.1 We do not exclude or limit in any way our liability to you where it would be unlawful to do so. This includes liability for death or personal injury caused by our negligence and for fraud or fraudulent misrepresentation.
- 16.2 Under no circumstances shall we be liable for any loss of opportunity, loss of profits or increased costs of working, special, indirect, or consequential damages of any kind and howsoever arising.

17) BUSINESS USERS

- 17.1 We exclude all implied conditions, warranties, representations or other terms that may apply to the Website or any content on it or that is accessed via it, including but not limited to the Services.
- 17.2 We will not be liable to you for any loss or damage, whether in contract, tort (including negligence), breach of statutory duty or otherwise, even if foreseeable, arising under or in connection with:
- a) use of, or inability to use, the Website or any Service; or
 - b) use of or reliance on any content displayed on the Website or via a Service.
- In particular but without limitation, we will not be liable for:
- a) loss of profits, sales, business, or revenue, or increased costs of working;
 - b) business interruption;
 - c) loss of anticipated savings;

- d) loss of business opportunity, goodwill or reputation; or
- e) any indirect or consequential loss or damage.

18) CONSUMERS/NON-BUSINESS USERS

- 18.1 If you are a consumer/retail customer you:
 - a) may only use the Website for private use; and
 - b) must not use the Website for any commercial or business purposes.
- 18.2 We shall not be liable for any damage, loss or costs arising out of or in any way connected with your use of the Services or the Website, including without limitation any reliance you place on information obtained via the Website or any Service.

19) DEFECTIVE DIGITAL CONTENT

- 19.1 If we supply digital content that damages a device or digital content belonging to you caused by our failure to use reasonable care and skill and no exclusions or limitations of liability included in these terms apply, we will either repair the damage or pay you compensation at our sole discretion, acting reasonably.
- 19.2 We will not in any event be liable for damage that you could have avoided by following our advice to apply an update offered to you free of charge or for damage that was caused by you failing to correctly follow installation instructions or to have in place the minimum system requirements advised by us.

20) USE OF PERSONAL INFORMATION

- 20.1 We will only use your personal information as set out in our Privacy Policy: <https://www.radixdlt.com/privacy-policy>.
- 20.2 If there is a dispute or any regulatory concern in respect of a transaction or your use of any Service we may release information we consider relevant to any person, court, mediator, regulator, arbitrator or similar engaged to assist resolution of the dispute and any regulator or authorised investigator.

21) LINKING

- 21.1 You may link to the Website provided you do so in a way that is fair and lawful and does not damage our reputation or take advantage of it.
- 21.2 You must not establish a link in a way that suggests any form of association, approval or endorsement on our part where none exists.
- 21.3 We reserve the right to withdraw linking permission without notice.
- 21.4 The website in which you are linking must comply in all respects with the content standards set out in our Acceptable Use clause.
- 21.5 If you wish to link to or make any use of content on the Website other than that set out above, please contact hello@radixdlt.com.

22) JURISDICTION AND LAWS - GENERAL

- 22.1 The situs of the agreement formed in accordance with these terms and conditions, the place of delivery of Radix® Wallet Software, the situs of any transaction effected using any of the Services provided by us via this Website or by using Radix® Wallet

Software including any debt or obligation and the situs of any property or rights in any token, digital asset, crypto-currency and/or cryptographic key is deemed to be England and the performance and the operation of this Website, Radix® Wallet Software and any transaction offers, sales or agreements made via this Website or using the Services or Radix® Wallet Software or any combination of these including any losses or damage arising therefrom shall be deemed to be England.

22.2 Nothing in this clause 22) shall limit or exclude our ability to enforce any rights to any intellectual property owned by or licensed to us in any territory in accordance with the laws applicable to such rights that subsist in any territory where such rights are used or licensed.

22.3 All operation of conflict of laws is excluded.

23) JURISDICTION AND LAWS - CONSUMERS

These terms and conditions, their subject matter and their formation (and any non-contractual disputes or claims) are governed by English law.

You and we both agree that the courts of England and Wales will have exclusive jurisdiction to determine any dispute that arises out of or in connection with these terms and conditions or their subject matter or formation.

If you are resident in Northern Ireland, you may bring proceedings in Northern Ireland, and if you are resident of Scotland, you may bring proceedings in Scotland.

24) JURISDICTION AND LAWS - BUSINESS USERS

These terms and conditions, their subject matter and their formation (and any non-contractual disputes or claims) are governed by English law. We both agree to the exclusive jurisdiction of the courts of England and Wales to determine any dispute that arises out of or in connection with these terms and conditions or their subject matter or formation.

25) NOTICES

Notices under these terms and conditions must be in writing and will be treated as delivered on the date received at the address, email transmission date or date on the courier's confirmation of delivery. Notices to us must be sent to: legal@radixdlt.com.

26) WAIVER

Failure to enforce any provision of this agreement will not constitute a waiver.

27) SEVERABILITY

If any part of these terms and conditions is held to be unenforceable, all other parts, clauses and provisions shall remain in full force and effect.

28) ENTIRE AGREEMENT

These terms and conditions constitute the entire agreement concerning their subject matter and supersedes any prior or concurrent communications. You acknowledge that we shall have no liability in respect of any representation, statement, misrepresentation or misstatement that is not expressly included in these terms and conditions.